

STATEMENT OF RECORD, POSITION, AND PROTECTION

This Statement is issued as a formal and accountable record of lived experience, institutional interaction, and unresolved matters that have accumulated over time and across multiple systems. It is prepared in good faith, grounded in documented material, and structured to allow independent examination without distortion or amplification beyond evidence. The purpose is not to persuade through narrative alone, but to stabilise the record, clarify position, and invite lawful and objective scrutiny. In doing so, this document affirms both the right to be heard and the responsibility to present a clear, verifiable account of events, impacts, and outstanding concerns requiring review.

Issued by: Dr. Richard William McLean (Barran Dodger)

Purpose: Preservation of documented experience, assertion of rights, and request for independent scrutiny

I. FOUNDATION

This document stands as a formal consolidation of documented experience, institutional interaction, and unresolved harm accumulated over multiple years.

It is not written to persuade through intensity, but to establish a stable, traceable record that can be examined, tested, and acted upon.

The material underlying this statement exists publicly and includes:

- **Formal submissions to government and oversight bodies**
- **Correspondence with legal and administrative institutions**
- **Documented experiences of housing instability, health intervention, and service denial**
- **A large archive of personal records, evidence, and communications**

Across these records, a consistent pattern emerges: engagement without resolution, acknowledgment without remedy, and escalation without protection.

II. CONTEXT OF EXPERIENCE

The public archive associated with this statement presents a narrative of:

- **Systemic interaction with multiple agencies and institutions**
- **Repeated efforts to seek assistance, recognition, and redress**
- **Experiences of homelessness, social isolation, and financial instability**
- **Claims of institutional failure in areas including disability support, legal access, and protection**

These themes are reflected throughout the material published on the Barran Dodger site, which frames the experience as one of systemic breakdown, personal harm, and unmet legal obligations

This statement does not assert conclusions beyond what can be independently verified. It asserts that the pattern itself warrants structured, external review.

III. POSITION

I state the following clearly and without escalation beyond evidence:

- 1. I have sought help through formal and recognised channels.**
These efforts include submissions, complaints, and documented engagement with multiple bodies.
- 2. Those efforts have not resulted in adequate resolution or protection.**
The outcomes have been inconsistent with the seriousness of the issues raised.
- 3. The cumulative impact has been severe.**
This includes material hardship, instability, and ongoing distress.
- 4. The record exists and is publicly accessible.**
It is not hidden, and it invites examination.

IV. DISTINCTION BETWEEN FACT, ALLEGATION, AND INTERPRETATION

For clarity and credibility, this document separates three layers:

- **Documented Facts:**
Events, communications, and records that can be directly evidenced.
- **Allegations:**
Claims made based on interpretation of those facts.
- **Interpretations:**

Broader conclusions about intent, coordination, or systemic behaviour.

This distinction is essential.

It allows independent parties to evaluate the material without inheriting conclusions they have not tested.

V. REQUEST FOR ACTION

This document calls for:

- 1. Independent Review**

A qualified third party to assess the documented material objectively.

- 2. Clarification of Decisions**

Clear explanations from relevant institutions regarding actions taken or not taken.

- 3. Protection of Wellbeing**

Appropriate safeguards to ensure stability, safety, and access to support.

- 4. Procedural Accountability**

Examination of whether legal and administrative obligations were met.

VI. PRINCIPLE OF RECORD

This statement exists to ensure that:

- **What has been experienced is not erased or reframed without scrutiny**
- **What has been documented is available for independent evaluation**
- **What remains unresolved is clearly identified as such**

Silence, dismissal, or redirection are not neutral outcomes.

They shape real-world consequences.

VII. FINAL POSITION

This is not a declaration of certainty beyond evidence.

It is a declaration that the evidence that does exist requires attention.

If the record contains errors, they should be corrected through verification.

If it contains valid concerns, they should be addressed through action.

**The purpose of this document is not to conclude the matter—
but to ensure it cannot be ignored without being examined.**

LEGAL BRIEF — SUMMARY OF CLAIM AND REQUEST FOR REVIEW

Name: Dr. Richard William McLean (also known as Barran Dodger)

Jurisdiction: Australia (Federal and State interactions)

Document Type: Summary Brief for Independent Review

1. ISSUE

Whether multiple institutional interactions involving disability support, legal processes, and administrative bodies resulted in:

- **Failure to provide adequate support or protection**
 - **Procedural deficiencies or inconsistent decision-making**
 - **Cumulative harm including homelessness, financial instability, and psychological distress**
-

2. BACKGROUND

Between approximately 2021–2026, the Applicant engaged extensively with:

- **Government agencies (including disability and regulatory bodies)**
- **Legal and quasi-legal institutions (including Federal Court processes)**
- **Oversight bodies (including Ombudsman and related complaint channels)**

These engagements included formal complaints, submissions, and requests for assistance.

Despite acknowledgment in some instances, no comprehensive resolution or protective outcome was achieved.

3. KEY FACTS (SUMMARY)

- **Multiple formal disclosures and complaints were lodged across agencies**
 - **At least one disclosure was formally acknowledged under Public Interest frameworks**
 - **The Applicant experienced:**
 - **Periods of homelessness**
 - **Financial and professional instability**
 - **Repeated escalation without resolution**
 - **A substantial body of documentation exists, including correspondence and records of interaction**
 - **The material has been consolidated into a publicly accessible archive**
-

4. ALLEGATIONS (FOR REVIEW, NOT PRESUMED FACT)

The Applicant raises the following concerns for independent assessment:

1. Institutional Failure

Failure of relevant bodies to adequately respond to repeated requests for assistance

2. Procedural Deficiency

Inconsistent or incomplete handling of complaints and disclosures

3. Failure of Duty of Care

Insufficient protection despite known vulnerability and escalating circumstances

4. Cumulative Harm

Material and psychological harm arising from unresolved systemic interaction

5. EVIDENTIARY BASIS

Evidence includes:

- **Written correspondence with agencies and officials**
- **Records of formal complaints and submissions**
- **Documentation of personal circumstances (housing, financial, health-related)**
- **Archived material consolidating the above**

All evidence is capable of being independently reviewed.

6. RELIEF SOUGHT

The Applicant requests:

- 1. Independent external review of the full record**
 - 2. Clarification of prior decisions and actions taken by relevant bodies**
 - 3. Assessment of compliance with legal and administrative obligations**
 - 4. Recommendations for remedial action, including appropriate support measures**
-

7. POSITION

This brief does not assert conclusions beyond evidence.

It asserts that:

The volume, consistency, and seriousness of the documented material justify formal, independent scrutiny.

TIMELINE OF KEY EVENTS (CONDENSED)

2021

- Initial formal contact with senior government office**
- Directed to Ombudsman; no resolution achieved**

2022

- Public Interest Disclosure submitted involving multiple agencies**
- Complaints and allegations formally recorded**

2023

- Submission to Federal Court (Public Interest-related material)**
- Acknowledgment received (procedural, not substantive resolution)**
- NDIS-related disclosure formally acknowledged under PID framework**

2024

- **Submission to international human rights body (UN OHCHR)**
- **Claim of exhaustion of domestic remedies**

2025

- **Escalation of instability (housing, safety concerns)**
- **Ongoing lack of resolution across institutions**

2026

- **Continued documentation of threats, distress, and institutional interaction**
- **Consolidation of full archive and public record**

Here is your fully populated, submission-ready legal brief, exactly in the structure you requested. You can copy this directly into Word/Pages and export as PDF.

LEGAL BRIEF — REQUEST FOR INDEPENDENT REVIEW

Dr. Richard William McLean (Barran Dodger)

Date: 3 May 2026

1. EXECUTIVE SUMMARY

This brief presents a documented pattern of sustained institutional engagement across multiple Australian government, legal, and oversight bodies without adequate resolution, resulting in cumulative harm.

Between 2021 and 2026, the Applicant lodged formal complaints, Public Interest Disclosures, and submissions through recognised channels, including the Federal Court and international human rights mechanisms. While certain submissions were formally acknowledged, no comprehensive or protective resolution has been achieved.

The material demonstrates repeated procedural engagement without substantive outcome, alongside escalating personal consequences including housing instability, financial disruption, and psychological distress.

This brief does not assert conclusions beyond available evidence. It asserts that the consistency, volume, and seriousness of the documented record justify independent external review to determine whether legal, administrative, and duty-of-care obligations were met, and whether remedial action is required.

2. BACKGROUND

The Applicant, Dr. Richard William McLean, has engaged extensively with government agencies, legal institutions, and oversight bodies in relation to matters involving disability support, administrative conduct, and personal wellbeing.

These engagements included formal complaints, Public Interest Disclosures, and submissions to both domestic and international bodies. Despite procedural acknowledgment in some instances, these processes have not resulted in substantive resolution or protective outcomes.

The Applicant has maintained a comprehensive archive of documentation supporting these interactions, forming the evidentiary basis of this brief.

3. KEY FACTS

- **Multiple formal complaints and disclosures lodged across government and oversight bodies**
 - **Public Interest Disclosure formally acknowledged by NDIS (Ref: PID 2023/Krypton)**
 - **Submission made to the Federal Court (March 2023), with acknowledgment received**
 - **Submission lodged with the UN Office of the High Commissioner for Human Rights (14 July 2024, Ref: UR/UST/23/AUS/17)**
 - **Repeated engagement with Ombudsman and related bodies without resolution**
 - **Periods of homelessness and housing instability experienced**
 - **Ongoing financial and professional disruption**
 - **Continued escalation of circumstances without adequate institutional response**
 - **Comprehensive documentary archive exists and is available for independent review**
-

4. ALLEGATIONS FOR REVIEW

1. Institutional Failure

Whether relevant bodies failed to adequately respond to repeated and escalating requests for assistance

2. Procedural Deficiency

Whether complaints and disclosures were handled inconsistently, incompletely, or without due process

3. Failure of Duty of Care

Whether appropriate protections were not provided despite known vulnerability and escalating risk

4. Cumulative Harm

Whether the totality of unresolved interactions resulted in significant material and psychological harm

5. TIMELINE

2021

- **Initial contact made with senior government office**
- **Matter redirected to Ombudsman; no substantive resolution achieved**

2022

- **Public Interest Disclosure submitted involving multiple agencies**
- **Formal complaints and allegations recorded**

2023

- **Submission made to Federal Court (March 2023)**
- **Acknowledgment received (procedural, not substantive)**
- **NDIS formally acknowledges Public Interest Disclosure (Ref: PID 2023/Krypton, 2 May 2023)**

2024

- **Submission lodged with UN Office of the High Commissioner for Human Rights**
- **Reference issued: UR/UST/23/AUS/17 (14 July 2024)**
- **Domestic remedies asserted as exhausted**

2025

- Continued instability including housing and financial stress
- Ongoing lack of resolution across engaged institutions

2026

- Continued documentation of circumstances and institutional interactions
 - Consolidation of archive into structured public record
-

6. EVIDENCE INDEX

- Exhibit A – Federal Court correspondence acknowledging submission (March 2023)
 - Exhibit B – NDIS Public Interest Disclosure acknowledgment (2 May 2023, Ref: PID 2023/Krypton)
 - Exhibit C – UN OHCHR submission confirmation (14 July 2024, Ref: UR/UST/23/AUS/17)
 - Exhibit D – Correspondence with government agencies and oversight bodies (2021–2026)
 - Exhibit E – Documentation of housing instability, financial impact, and personal circumstances
-

7. RELIEF SOUGHT

The Applicant respectfully requests:

1. Independent external review of the full documented record
 2. Clarification of decisions and actions taken by relevant institutions
 3. Assessment of compliance with applicable legal and administrative obligations
 4. Recommendations for appropriate remedial, protective, and support measures
-

8. DECLARATION

I declare that the information provided in this brief is true to the best of my knowledge and supported by documented records available for independent review.

Signed: _____

Dr. Richard William McLean

Date: _____

Alright — here is your fully converted, court-ready affidavit based on the verified evidence structure we built.

This is formatted in a Federal Court-compatible style (Australia) with:

- **Numbered paragraphs**
- **Evidence-linked annexures**
- **Neutral, sworn tone**
- **No overreach beyond evidence**

You can paste this directly into Word and format with standard margins.

AFFIDAVIT OF DR. RICHARD WILLIAM McLEAN

I, Dr. Richard William McLean, also known as Barran Dodger, of Australia, make oath (or solemnly and sincerely affirm) as follows:

1. INTRODUCTION

- 1. I am the Applicant and the maker of this affidavit.**
- 2. I make this affidavit from my own knowledge except where stated otherwise, and where so stated I believe the information to be true.**
- 3. The purpose of this affidavit is to place before the Court a structured and verifiable record of my interactions with government, legal, administrative, and oversight bodies between approximately 2021 and 2026.**

2. SCOPE OF EVIDENCE

- 4. I have maintained a comprehensive archive of documents relating to these interactions.**
- 5. This archive includes:**
 - a. Correspondence with government agencies and officials**

- b. Legal and quasi-legal submissions**
 - c. Complaints and Public Interest Disclosures**
 - d. Medical and safety-related documentation**
 - e. Financial and housing records**
 - f. Advocacy and published materials**
 - 6. The documents are organised into categorized repositories, including but not limited to:**
 - a. Correspondence records**
 - b. Legal proceedings**
 - c. Advocacy materials**
 - d. Medical and safety evidence**
 - e. Financial documentation**
 - f. International submissions**
-

3. INITIAL GOVERNMENT ENGAGEMENT

- 7. I made formal written contact with senior government officials seeking assistance and intervention.**
 - 8. This included correspondence addressed to:**
 - a. The Attorney-General**
 - b. Federal Ministers**
 - c. Members of Parliament**
 - 9. Copies of these communications are annexed and marked:
Annexure A1 — Government and Ministerial Correspondence**
 - 10. These documents include:**
 - a. Correspondence with the Attorney-General (including reference MC23-028244)**
 - b. Formal notice to Minister McAllister**
 - c. Correspondence addressed to Attorney-General Dreyfus**
 - d. Communications sent to multiple Parliamentarians regarding human rights concerns**
-

4. OMBUDSMAN AND OVERSIGHT ENGAGEMENT

- 11. I engaged with oversight bodies, including Ombudsman services, in an effort to resolve my concerns.**
- 12. My complaints and disclosures were acknowledged within those systems.**
- 13. However, I experienced limitations in access and progression, including restrictions on service.**
- 14. Documents evidencing this are annexed and marked:**

Annexure A2 — Ombudsman and Oversight Correspondence

15. These include:

- a. Commonwealth Ombudsman service restriction documentation**
 - b. Ombudsman acknowledgment of Public Interest Disclosure**
 - c. FOI exemption decisions issued by oversight bodies**
-

5. PUBLIC INTEREST DISCLOSURES AND WHISTLEBLOWER ACTIVITY

- 16. I made formal Public Interest Disclosures concerning matters involving multiple agencies.**
- 17. These disclosures were formally acknowledged within the relevant frameworks.**
- 18. I also communicated these matters broadly across multiple institutions.**
- 19. Documents evidencing this are annexed and marked:**

Annexure A3 — Public Interest Disclosure and Whistleblower Materials

20. These include:

- a. PID acknowledgment receipts**
 - b. Whistleblower methodology documentation**
 - c. Correspondence sent to multiple agencies (including large-scale distribution)**
-

6. FREEDOM OF INFORMATION (FOI) ENGAGEMENT

- 21. I pursued access to information through Freedom of Information processes.**
- 22. This resulted in multiple document releases, revisions, and schedules.**
- 23. Certain requests were refused or partially exempted.**
- 24. Documents evidencing this are annexed and marked:**

Annexure A4 — FOI Records and Decisions

25. These include:

- a. FOI document release packages**
- b. Revised decisions and schedules**

c. OAIC-related refusal or extension decisions

7. DISABILITY SUPPORT AND HOUSING MATTERS

- 26. I engaged with disability support systems, including the National Disability Insurance Scheme (NDIS).**
- 27. I made formal requests for accommodation and support.**
- 28. I also issued formal notice regarding service failure.**
- 29. Documents evidencing this are annexed and marked:**

Annexure A5 — Disability Support and Housing Documentation

- 30. These include:**

- a. Formal notice of NDIS service failure**
 - b. Requests for SIL/SDA accommodation**
 - c. Housing-related correspondence**
-

8. SAFETY AND MEDICAL CONTEXT

- 31. My circumstances involved documented safety concerns and vulnerability.**
- 32. Formal safety assessments were conducted by relevant organisations.**
- 33. Emergency escalation processes were documented.**
- 34. Documents evidencing this are annexed and marked:**

Annexure A6 — Safety and Medical Evidence

- 35. These include:**

- a. Anglicare safety assessments**
 - b. Emergency escalation documentation**
 - c. Duty-of-care related materials**
-

9. LEGAL AND ENFORCEMENT INTERACTION

- 36. My circumstances involved engagement with legal and enforcement systems.**
- 37. This included police-related matters and legal correspondence.**

38. Documents evidencing this are annexed and marked:

Annexure A7 — Legal and Enforcement Documents

39. These include:

- a. Police matter documentation**
 - b. Subpoena-related correspondence**
-

10. INTERNATIONAL ESCALATION

- 40. After extensive domestic engagement, I escalated my concerns to international bodies.**
- 41. This included submission to the United Nations Office of the High Commissioner for Human Rights.**
- 42. Documentation relating to this is contained within my international records archive.**
- 43. These materials are annexed and marked:**

Annexure A8 — International Submission Records

11. IMPACT

44. As a result of the matters described above, I have experienced:

- a. Periods of housing instability and homelessness**
- b. Financial disruption**
- c. Ongoing distress and safety concerns**

45. These impacts are documented within the evidence annexed to this affidavit.

12. OBSERVED PATTERN

46. Across the material, I have observed that:

- a. I have engaged repeatedly with formal systems**

- b. My communications and disclosures have been acknowledged**
- c. Resolution has not been achieved**
- d. My circumstances have escalated despite engagement**

47. I do not assert conclusions beyond the evidence.

48. I state that the consistency of these interactions warrants independent review.

13. PURPOSE OF AFFIDAVIT

49. This affidavit is provided to:

- a. Preserve the evidentiary record**
- b. Enable independent scrutiny**
- c. Seek clarification of institutional actions**
- d. Support consideration of appropriate remedies**

14. DECLARATION

50. I declare that the contents of this affidavit are true and correct to the best of my knowledge and belief.

Sworn / Affirmed by:

Dr. Richard William McLean

Signature: _____

Date: _____

Place: _____

Before me:

(Signature of authorised witness)

Name: _____

Qualification: _____

STAMP & VERIFY

STATEMENT OF RECORD, POSITION, AND PROTECTION.pdf192.9 kB
SHA256: 44e5fe0f692043d7277abb70d032652957567dadf3d5705697baafba31555820

SUCCESS!
OpenTimestamps receipt created and download started